

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Mac Muir	Team: Squad #2	CCRB Case #: 201803870	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 05/08/2018 8:20 PM	Location of Incident: 40th Precinct Stationhouse	Precinct: 40	18 Mo. SOL 11/8/2019	EO SOL 11/8/2019	
Date/Time CV Reported Tue, 05/08/2018 11:58 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 05/16/2018 11:07 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Robert Jaquez	192	938711	NARCB BX
2. DT3 Abdiel Anderson	01429	932254	NARCB BX
3. DT3 Joseph Marquez	00530	932961	NARCB BX
4. SGT Joseph Faello	03218	919019	NARCB BX
5. DT3 Jodi Brown	04057	936246	NARCB BX

Officer(s)	Allegation	Investigator Recommendation
A.DT3 Jodi Brown	Force: Detective Jodi Brown used physical force against § 87(2)(b)	
B.DT3 Abdiel Anderson	Force: Detective Abdiel Anderson used physical force against § 87(2)(b)	
C.DT3 Joseph Marquez	Force: Detective Joseph Marquez used physical force against § 87(2)(b)	
D.SGT Joseph Faello	Force: Sergeant Joseph Faello used physical force against § 87(2)(b)	
E.DT3 Robert Jaquez	Force: Detective Robert Jaquez used physical force against § 87(2)(b)	

Case Summary

On May 8, 2018, this complaint was submitted by Sergeant Joseph Faello of Bronx Narcotics on behalf of § 87(2)(b) and § 87(2)(b) to the Internal Affairs Bureau (IAB) via telephone. It was received by the CCRB on May 16, 2018. On July 6, 2018, a spin-off (CCRB Case # § 87(2)(b)) was created which pertained solely to the allegations made by § 87(2)(b). This case pertains only to the allegations made by § 87(2)(b).

On July 2, 2018, § 87(2)(b) called and stated that he wanted the CCRB to communicate through his attorney. On July 5, 2018, § 87(2)(b)'s attorney, § 87(2)(b), called and scheduled § 87(2)(b) for an interview appointment at her office in the Bronx on July 11, 2018. On July 11, 2018, CCRB investigators went to § 87(2)(b)'s office but § 87(2)(b) missed his interview appointment without calling in advance to cancel or reschedule. At that time, § 87(2)(b) scheduled him for a second interview appointment at the CCRB on July 25, 2018. On July 25, 2018, § 87(2)(b) missed his second interview appointment without calling in advance to cancel or reschedule.

A search of the New York City Department of Correction website on July 25, 2018, indicated that § 87(2)(b) was not incarcerated. No video footage was obtained for this incident.

§ 87(2)(g)

Squad 2

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date
Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date
Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date